UNIT PUNISHMENT BOOK (5812)

PRIVACY ACT STATEMENT

Authority: 10 U.S.C. 5013; 10 U.S.C. 5041; 10 U.S.C. 801-946a; 10 U.S.C. 2683; 10 U.S.C. 8046; 10 U.S.C. 8088; E.O. 13825; E.O. 14103; JAGINST 5800.7G, Ch. 1, Part B; MCO 5800.16, Vol. 14-15; and SORNs M01070-6 and DoD 0006 (Available at: https://dpcld.defense.gov/Privacy/SORNsIndex/DOD-Component-Notices/).
Purpose: Information will be used by designated command personnel to record and process non-judicial punishment actions. Information will be added to the individual's OMPF. Specific punishments may be recorded and effectuated in the individual's MCTFS record.
Routine Uses: Information is not routinely disclosed outside of DoD. A complete list and explanation of the applicable routine uses is published in the authorizing SORNs.
Disclosure: Mandatory under MCO 5800.16. Failure to provide information may result in additional punishment under Article 92, UCMJ, 10 U.S.C. 892.
Records Management: This form shall be managed in accordance with Record Schedule 5000-82.

1. UCMJ OFFENSES ALLEGED AND SUMMARIES (including date and place, but **not** victim PII).

A. _____ _____
B. _____ _____
C. _____ _____
D. _____ _____
E. _____ _____

2. I have been advised of and understand my rights under Article 31, UCMJ. I also have been advised of and understand my right to demand trial by court martial in lieu of non-judicial punishment (NJP). I do not demand trial and will accept non-judicial punishment, subject to my right of appeal.

I further certify that **I __have_____ been given the opportunity to consult with a military lawyer**, provided at no expense to me, regarding a pending NJP hearing for the above offenses. I understand that I have the right to refuse NJP unless attached to or embarked upon a vessel. I further understand that acceptance of NJP does not preclude my command from taking other adverse administrative action against me.

BOOKER STATEMENT: Having been advised of the above and fully understanding my rights, I choose to accept NJP.

☐ Accused refused to sign

DATE _____ (Signature of accused or CO if refused) _____

3. The accused has been afforded these rights under Article 31, UCMJ, and advised of the right to demand trial by court-martial if not attached to or embarked upon a vessel. I certify that, if applying the vessel exception, I have complied with all applicable requirements.

DATE _____ (Signature of CO) _____

4. CURRENT UNAUTHORIZED ABSENCES >24 HRS AND MARKS OF DESERTION

5. FINDINGS (enter "G" for guilty or "NG" for not guilty)
By a preponderance of the evidence, I find the accused: 1A _____ 1B _____ 1C _____ 1D _____ 1E _____

6. PUNISHMENT IMPOSED AND DATE

7. SUSPENSION OF EXECUTION OF PUNISHMENT (or "NONE")

8. NJP AUTHORITY (First Middle Last, Title, Service Branch if other than USMC)	8A. RANK/GRADE	8B. EDIPI

9. Upon consideration of the attendant facts and circumstances, as well as the needs of military discipline within this command, I have determined the appropriate punishment to be that indicated above.

(Signature of NJP Authority) _____

10. DATE OF NOTICE TO ACCUSED OF FINAL DISPOSITION TAKEN

11. The accused has been advised of the right to appeal.

DATE _____ (Signature of NJP Authority) _____

12. Having been advised of and understanding the right to appeal, at this time _____

DATE _____ (Signature of accused or CO if refused) _____

13. DATE OF APPEAL, IF ANY
☐ Not appealed

14. DECISION ON APPEAL (IF APPEAL IS MADE), DATE THEREOF, AND SIGNATURE OF NJP APPEAL AUTHORITY

DATE _____ (Signature of NJP Appeal Authority) _____

15. DATE OF NOTICE TO ACCUSED OF DECISION ON APPEAL

16. Final administrative action, as appropriate, has been completed. UD# _____ DTD _____ INIT _____

17. UNIT

18. ACCUSED (Last, First Middle)	19. RANK/GRADE	20. EDIPI